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Dear Sir / Madam,

RE: SUBMISSION OF STAND UP SHOUT OUT TO KENYA ROADS (AMENDMENT) BILL, 2024

Stand Up Shout Out is a world renowned brand that speaks through actions and well coordinated campaigns. Stand Up Shout Out (SUSO) organisation that was born from a movement on 18th January 2013 that later on became an International NGO officially recognized by the name World Leaders Of Today in 2018 under Section 10 of the Non Governmental Organisation Act; with the brand SUSO becoming the Main Program and face of the INGO.

WLT as an NGO deals with Good Governance and Advocacy, Poverty Reduction, Conservation, Youth Inclusion, Empowerment and Engagement (as well as contributing to achieve the Sustainable Development Goals). We are strategic in our approach on issues facing society and believe that the youth are the biggest asset the world currently has; they are not the leaders of tomorrow, rather, the leaders of today and should be treated as so. We aim to tackle issues on all levels - from the grassroots to governments, urban and rural communities, educational institutions etc. Our directing three-word motto: Mobilise | Organise | Implement sees us at the forefront of change in our society.

Through its **Policy and Advocacy Programme, Bonga Na Gava (BNG), World Leaders of Today (WLT)**, in collaboration with **WWF-Kenya**, convened **44 Bonga Na Gava Warriors** at the SUSO Mabingwa Youth Centre on **22 July 2024** to review the **Roads (Amendment) Bill, 2024**.

Following this engagement, BNG has continued to track the Bill's progress through Parliament and has remained engaged with the issues raised through its review. The Bill has since progressed to the **Senate**, presenting a new stage in the legislative process and an opportunity to revisit and build on the perspectives developed in 2024. BNG therefore seeks to continue this engagement by reviewing the Bill at its current stage and sharing its views through the ongoing Senate public participation process.

As Stand Up Shout Out and the Bonga Na Gava Fellows, we hereby submit our comments on the Roads (Amendment) Bill 2024, and are open to make a virtual / physical presentation of our views

We look forward to hearing back from the Department and to further engagement on this critical piece of legislation.

Kind regards,
Stand Up Shout Out, Bonga Na Gava (Policy & Advocacy Tool) Lead

SUBMISSION OF COMMENTS & AMENDMENTS TO THE ROAD (AMENDMENT) BILL, 2024

The Roads Amendment Bill 2024 will play a crucial role in enhancing sustainability and climate change resilience in the plan, design, construction and maintenance of road construction, promoting low-carbon transport in Kenya and aligning with international commitments, particularly the United Nations Framework Convention on Climate Change (UNFCCC), Sustainable Development Goals (SDGs), the National Climate Change Action Plan III 2023-2027, Kenya's Green Economy Strategy Implementation Plan (GESIP) 2013- 2030 and the Integrated National Transport Policy 2024.

We affirm that promotion of Non-Motorized Transport (NMT) offers accessibility and mobility for vulnerable groups, affordable transport, health benefits such as improved physical health and improved air quality as a result of zero Greenhouse Gas (GHGs) emissions.

However, failure to consider sustainability in the development of these projects, will most likely result in high economic, environmental and social long term costs.

We acknowledge that road network plays a pivotal role in the economic development of a country through; Facilitation of Trade; Attracting Investment; Reducing Transportation Costs; Boosting Tourism; Generating Employment; Enhancing Productivity; Improving Access to Markets and Access to Essential Service but at the same time vulnerable to climate impacts thus must be constructed in a way to enhance climate resilience.

Outlined below is the input from World Leaders Of Today, Stand Up Shout Out, through our Policy and Advocacy tool, Bonga Na Gava (BNG)

	AMENDMENTS	CURRENT ACT	PROPOSED RECOMMENDATIONS	JUSTIFICATION & RATIONALE
Amend ment of Section 2 of Cap. 408	2.The Kenya Roads Act, (herein after referred to as "the principal Act") is amended in section 2 by inserting the following new definitions in their proper alphabetical	2. In this Act, unless the context otherwise requires— "Authority" means the Highways Authority, the Rural Roads Authority or the Urban Roads Authority; "city" shall have the meaning	<i><u>The proposed recommendation for Amendment of Section 2 of Cap 408 is that the bill adds the below definitions</u></i> <u>"Mobility assistance devices" refers to technological mechanical devices that help individuals with mobility impairments to walk or improve their overall mobility.</u>	The proposed definitions address key terminology required for the effective implementation of the Bill and provide greater legal and operational clarity. Defining "mobility assistance devices" recognises the different technologies and devices used by persons with mobility impairments and strengthens the accessibility of

Sequence— "bicycle" has the same meaning assigned to it under the Traffic Act; "cycling lane" means on-toad lanes exclusively reserved for use by bicycles and wheelchairs, with clear markings separating them from other lanes used by motorized vehicles; "cycling track" means part of the road exclusively reserved for use by bicycles and wheelchairs and is physically separated from tracks used by motorized Vehicles; "non-motorized transport" means all forms of travel	assigned to it under the Local Government Act (Cap. 265); "class" in relation to a road means the categorization assigned to it pursuant to the First Schedule; "construction" means supervision, inspection and building and includes locating, surveying, mapping and eliminating road hazards; "Director-General" means the Director-General appointed under section 13(1) or a person authorised to act on his behalf; "Highways Authority" means the Kenya National Highways Authority established under section 3; "Local Authorities Transfer Fund" shall have the meaning assigned to it under the Local Authorities Transfer Fund Act (Cap. 272A); "Cabinet Secretary" means the Cabinet Secretary responsible for Roads;	<u>"County Roads" " means all roads falling within the mandate of the county governments under Part 2 of the Fourth Schedule to the Constitution and specified under any other written law;</u> <u>"Green infrastructure" refers to a network of natural and semi natural systems that are purposely designed to provide multiple environmental benefits such as managing water, avoiding flooding, and improving the quality of air in an urban setting. They include planting urban trees, permeable pavements, and planter boxes.</u>	non-motorised transport infrastructure. Defining "County Roads" clarifies the scope of roads falling within the mandate of county governments and supports consistency with the constitutional framework on devolved functions. The inclusion of "green infrastructure" provides a basis for integrating nature-based and environmentally responsive approaches into road planning and development, including measures that support drainage, flood management and urban environmental quality.
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	that do not rely on an engine or motor for movement and includes walking, cycling and mobility assistance devices; "non-motorized vehicle" means any vehicle that is not self-propelled and includes bicycle, wheelchair, and Scooter; "pedestrian" means a person travelling on foot; "pedestrian walkway" means that part of the road exclusively reserved for use by pedestrians and is physically separated from lanes used by motorized vehicles.	"municipality" shall have the meaning assigned to it under the Local Government Act (Cap. 265); "national roads" means national roads as classified in the First Schedule; "road" means a public road as defined under the Public Roads and Roads of Access Act (Cap. 399); "Road Fund" means the Kenya Roads Board Fund established under the Kenya Roads Board Act (Cap. 408A); "roadside development" means a physical structure or facility on land within or adjoining a road reserve; "rural roads" means rural roads as so classified in the First Schedule; "Rural Roads Authority" means the Kenya Rural Roads Authority established under section 6;		
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Amendment of Section 4 of CAP 408	3. Section 4 of the principal Act is amended in subsection (2) by inserting the following new paragraph immediately after paragraph (a)— (aa) designing and constructing designated tracks for non-motorized transport for existing roads and new roads under its control, including cycling lanes and pedestrian walkways which shall be separated from tracks for motorized transport.	4. Functions of the Authority (1) The Highways Authority shall be responsible for the management, development, rehabilitation and maintenance of national roads. (2) For the purposes of discharging its responsibility under subsection (1), the Highways Authority shall have the following functions and duties— (a) constructing, upgrading, rehabilitating and maintaining roads under its control; (b) controlling national roads and road reserves and access to roadside developments; (c) implementing road policies in relation to national roads; (d) ensuring adherence to the rules and guidelines on axle load control prescribed under the Traffic Act (Cap. 403) and under any regulations under this Act;	<u>The Proposed recommendation for Amendment of Section 4 of CAP 408 is as follows:</u> (1) The Highways Authority shall be responsible for the management, development, rehabilitation, and maintenance of national roads, <u>ensuring all activities comply with environmental standards set by the Environmental Management and Coordination Act (EMCA)</u> (2) For the purposes of discharging its responsibilities under subsection (1), the Highways Authority shall have the following functions and duties: (a) Constructing, Upgrading, Rehabilitating, and Maintaining Roads under its control <u>while adhering to environmental regulations, including conducting mandatory Environmental Impact Assessments (EIA) and implementing necessary measures to minimise adverse environmental impacts under Environmental Management and Coordination Act (EMCA)</u> (aa) Designing and constructing designated tracks for non-motorized transport for existing roads and new roads under its control, including cycling lanes and pedestrian walkways which shall be separated from tracks for motorized transport <u>while adhering</u>	The recommendation seeks to amend section 4 of the Act to: The proposed amendments strengthen the functions of the Highways Authority by embedding environmental protection, accessibility and sustainable infrastructure planning into road development. Requiring compliance with applicable environmental standards and impact-assessment requirements ensures that road construction and rehabilitation appropriately identify and mitigate environmental impacts. The express provision for non-motorised transport infrastructure strengthens safe and inclusive mobility, while the inclusion of green infrastructure, wildlife crossings and erosion-control measures promotes more resilient road design and reduces environmental harm. The proposed provision on drainage further recognises the importance of integrated infrastructure for managing runoff, flooding and erosion. Section 58 of EMCA provides the statutory

		(e) ensuring that the quality of road works is in accordance with such standards as may be prescribed by the Cabinet Secretary; (f) in collaboration with the Ministry responsible for Transport and the Police Department, overseeing the management of traffic and road safety on national roads; (g) collecting and collating all such data related to the use of national roads as may be necessary for efficient forward planning under this Act; (h) monitoring and evaluating the use of national roads; (i) planning the development and maintenance of national roads; (j) advising the Cabinet Secretary on all issues relating to national roads; (k) preparing the road works programmes for all national roads;	to environmental regulations, including conducting Environmental Impact Assessments (EIA) and implementing necessary measures to minimise adverse environmental impacts (b) controlling national roads and road reserves and access to roadside developments; (c) implementing road policies in relation to national roads; (d) ensuring adherence to the rules and guidelines on axle load control prescribed under the Traffic Act (Cap. 403) and under any regulations under this Act; (e) ensuring that the quality of road works is in accordance with such standards as may be prescribed by the Cabinet Secretary; (f) in collaboration with the Ministry responsible for Transport and the Police Department, overseeing the management of traffic and road safety on national roads; (g) collecting and collating all such data related to the use of national roads as may be necessary for efficient forward planning under this Act; (h) monitoring and evaluating the use of national roads;	framework for environmental impact assessment for projects that fall within its scope.
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		(l) liaising and co-ordinating with other road authorities in planning and on operations in respect of roads; and (m) performing such other functions related to the implementation of this Act as may be directed by the Cabinet Secretary.	(i) planning the development and maintenance of national roads; (j) advising the Cabinet Secretary on all issues relating to national roads; (k) preparing the road works programmes for all national roads (l) liaising and co-ordinating with other road authorities in planning and on operations in respect of roads; and (m) performing such other functions related to the implementation of this Act as may be directed by the Cabinet Secretary. <u>The Proposed recommendation for inserting 2 paragraphs immediately after paragraph m</u> (mm) incorporate green infrastructure and sustainable design practices, such as the use of permeable materials, wildlife crossings, and erosion control measures in all existing and new roads. (mmm) facilitate the design, development and maintenance of drainage systems along county roads;	
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Amendment of section 7 of Cap. 408.	4. Section 7 of the principal Act is amended in — (1) subsection (2) by inserting the following new paragraph immediately after paragraph (a)— (aa) designing and constructing designated tracks for non-motorized transport for existing roads and new roads under its control, including cycling lanes and pedestrian walkways which shall be separated from tracks for motorized transport.	7. Functions of the Authority (1) The Rural Roads Authority shall have responsibility for the management, development, rehabilitation and maintenance of rural roads. (2) For the purpose of discharging the responsibility described in subsection (1) above the Rural Roads Authority shall have the following functions and duties— (a) constructing, upgrading, rehabilitating and maintaining roads under its control; (b) controlling reserves for rural roads and access to roadside developments; (c) implementing road policies in relation to rural roads; (d) ensuring adherence by motorists to the rules and guidelines on axle load control prescribed under the Traffic Act (Cap. 403) or any regulations under this Act; (e) ensuring that the quality of road	<u>The Proposed recommendation for Amendment of Section 7 of Cap 408 is as follows:</u> (1) The Rural Roads Authority shall have responsibility for the management, development, rehabilitation and maintenance of rural roads, ensuring all activities comply with environmental standards set by the Environmental Management and Coordination Act (EMCA). (2) For the purpose of discharging the responsibility described in subsection (1), the Rural Authority shall have the following functions and duties: (a) Constructing, Upgrading, Rehabilitating, and Maintaining Roads under its control while adhering to environmental regulations, including conducting mandatory Environmental Impact Assessments (EIA) and implementing necessary measures to minimise adverse environmental impacts under Environmental Management and Coordination Act (EMCA) (aa) Designing and constructing designated tracks for non-motorized transport for existing roads and new roads under its control, including cycling lanes and pedestrian walkways which shall be separated from tracks for motorized transport while adhering to environmental regulations, including conducting Environmental Impact Assessments (EIA) and	The recommendation seeks to amend section 10 of the Act to: Make provision for the Rural Roads Authority to design and construct lanes for non-motorized transport in designated roads under its control while adhering to environmental regulations, including conducting Environmental Impact Assessments (EIA) and implementing necessary measures to minimise adverse environmental impacts as well as incorporate green infrastructure such as the use of permeable materials, wildlife crossings, and erosion control measures in all existing and new roads.
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		works is in accordance with such standards as may be defined by the Cabinet Secretary; (f) in collaboration with the Ministry responsible for Transport and the Police Department, overseeing the management of traffic on rural roads and issues related to road safety; (g) collecting and collating all such data related to the use of rural roads as may be necessary for efficient forward planning under this Act; (h) monitoring and evaluating the use of rural roads; (i) planning the development and maintenance of rural roads; (j) liaising and co-ordinating with other authorities in planning and operations in respect of Roads; (k) preparing the road work programmes for all rural roads;	<u>implementing necessary measures to minimise adverse environmental impacts</u> (b) controlling reserves for rural roads and access to roadside developments; (c) implementing road policies in relation to rural roads; (d) ensuring adherence by motorists to the rules and guidelines on axle load control prescribed under the Traffic Act (Cap. 403) or any regulations under this Act; (e) ensuring that the quality of road works is in accordance with such standards as may be defined by the Cabinet Secretary; (f) in collaboration with the Ministry responsible for Transport and the Police Department, overseeing the management of traffic on rural roads and issues related to road safety; (g) collecting and collating all such data related to the use of rural roads as may be necessary for efficient forward planning under this Act; (h) monitoring and evaluating the use of rural roads; (i) planning the development and maintenance of	
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		(l) advising the Cabinet Secretary on all issues relating to rural roads; and (m) performing such other functions related to the implementation of this Act as may be directed by the Cabinet Secretary.	rural roads; (j) liaising and co-ordinating with other authorities in planning and operations in respect of Roads; (k) preparing the road work programmes for all rural roads; (l) advising the Cabinet Secretary on all issues relating to rural roads; and (m) performing such other functions related to the implementation of this Act as may be directed by the Cabinet Secretary. <u><i>Proposed recommendation for inserting 2 paragraphs immediately after paragraph m</i></u> (mm) incorporate green infrastructure and sustainable design practices, such as the use of permeable materials, wildlife crossings, and erosion control measures in all existing and new roads. (mmm) facilitate the design, development and maintenance of drainage systems along county roads;	
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Amendment of section 10 of Cap. 408.	5. Section 10 of the principal Act is amended in — (1) subsection (2) by inserting the following new paragraph immediately after paragraph (a)— (aa) designing and constructing designated tracks for non-motorized transport for existing roads and new roads under its control, including cycling lanes and pedestrian walkways which shall be separated from tracks for motorized transport. The principal Act is amended by inserting a new section immediately after Section 11 —	10. Functions of the Authority (1) The Urban Roads Authority shall have the responsibility for the management, development, rehabilitation and maintenance of all public roads in the cities and municipalities in Kenya except where those roads are national roads. (2) For the purposes of discharging its responsibility under subsection (1) the Authority shall have the following powers and duties— (a) constructing, upgrading, rehabilitating and maintaining roads under its control; (b) controlling urban road reserves and access to roadside developments; (c) implementing roads policies in relation to urban roads; (d) ensuring adherence by motorists to the rules and guidelines on axle load control prescribed under the Traffic Act (Cap. 403)	<u>The Proposed recommendation for Amendment of Section 10 of CAP 408 is as follows:</u> (1) The Urban Roads Authority shall have responsibility for the management, development, rehabilitation and maintenance of all public roads in the cities and municipalities in Kenya except where those roads are national roads <u>while ensuring all activities comply with environmental standards set by the Environmental Management and Coordination Act (EMCA).</u> (2) For the purpose of discharging the responsibility under subsection (1), the Urban Roads Authority shall have the following powers and duties: (a) Constructing, Upgrading, Rehabilitating, and Maintaining Roads under its control <u>while adhering to environmental regulations, including conducting mandatory Environmental Impact Assessments (EIA) and implementing necessary measures to minimise adverse environmental impacts under Environmental Management and Coordination Act (EMCA)</u> (b) Designing and constructing designated tracks for non-motorized transport for existing roads and new roads under its control, including cycling lanes and pedestrian walkways which shall be separated from tracks for motorized transport <u>while adhering</u>	The recommendation seeks to amend section 10 of the Act to: 1. Make provision for the Kenya Urban Roads Authority to design and construct lanes for non-motorized transport in designated roads under its control while adhering to environmental regulations, including conducting Environmental Impact Assessments (EIA) and implementing necessary measures to minimise adverse environmental impacts as well as incorporate green infrastructure such as the use of permeable materials, wildlife crossings, and erosion control measures in all existing and new roads.
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		and under any regulations under this Act; (e) ensuring that the quality of road works is in accordance with such standards as may be defined by the Cabinet Secretary; (f) in collaboration with the Ministry responsible for transport and the Police Department, overseeing the management of traffic and road safety on urban roads; (g) monitoring and evaluating the use of urban roads; (h) planning the development and maintenance of urban roads; (i) collecting and collating all such data related to the use of urban roads as may be necessary for efficient forward planning under this Act; (j) preparing the road works programmes for all urban roads; (k) liaising and co-ordinating with	to environmental regulations, including conducting Environmental Impact Assessments (EIA) and implementing necessary measures to minimise adverse environmental impacts (c) implementing roads policies in relation to urban roads; (d) ensuring adherence by motorists to the rules and guidelines on axle load control prescribed under the Traffic Act (Cap. 403) and under any regulations under this Act; (e) ensuring that the quality of road works is in accordance with such standards as may be defined by the Cabinet Secretary; (f) in collaboration with the Ministry responsible for transport and the Police Department, overseeing the management of traffic and road safety on urban roads; (g) monitoring and evaluating the use of urban roads; (h) planning the development and maintenance of urban roads; (i) collecting and collating all such data related to the use of urban roads as may be necessary for efficient forward planning under this Act;	
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		other road authorities in planning and on operations in respect of roads; (l) advising the Cabinet Secretary on all issues relating to urban roads; and (m) performing such other functions related to the implementation of this Act as may be directed by the Cabinet Secretary.	(j) preparing the road works programmes for all urban roads; (k) liaising and co-ordinating with other road authorities in planning and on operations in respect of roads; (l) advising the Cabinet Secretary on all issues relating to urban roads; and (m) performing such other functions related to the implementation of this Act as may be directed by the Cabinet Secretary. <u><i>Proposed recommendation for inserting 2 paragraphs immediately after paragraph m</i></u> (mm) incorporate green infrastructure and sustainable design practices, such as the use of permeable materials, wildlife crossings, and erosion control measures in all existing and new roads. (mmm) facilitate the design, development and maintenance of drainage systems along county roads;	
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Inserting a new section 10A.	The principal Act is amended by inserting a new section immediately after Section 11 — 11A The county governments shall have the following roles — (1) designing and constructing designated tracks for non-motorized transport for existing roads and new roads under its control, including cycling lanes and pedestrian walkways which shall be separated from tracks for motorized transport.		<u>The Proposed recommendation for the additional section and other additions</u> (a) Designing and constructing designated tracks for non-motorized transport for existing roads and new roads under its control, including cycling lanes and pedestrian walkways which shall be separated from tracks for motorized transport <u>while adhering to environmental regulations, including conducting mandatory Environmental Impact Assessments (EIA) and implementing necessary measures to minimise adverse environmental impacts under EMCA</u> <u>(b) incorporate green infrastructure and sustainable design practices, such as the use of permeable materials, wildlife crossings, and erosion control measures in all existing and new roads</u> <u>(c) provide a framework for the planning and construction of access ways from major roads in each county in a manner that ensures the safety of road users;</u> <u>(d) formulate a comprehensive plan for the construction and maintenance of county roads within the respective county;</u> <u>(e) facilitate the design, development and</u>	The recommendation seeks to amend section 10 of the Act to: Make provision for county governments in the implementation of non-motorized transport infrastructure provision, such as sidewalks, pedestrian crossings and cycle lanes, as part of its responsibilities while adhering to environmental regulations, including conducting Environmental Impact Assessments (EIA) and implementing necessary measures to minimise adverse environmental impacts
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			maintenance of drainage systems along county roads;	
Amend ment of section 22 of Cap. 408.	6. Section 22 of the principal Act is amended— (1) in subsection (1) by inserting the following new paragraph immediately after paragraph (a)— (aa) to co-operate with county governments which have power over non-motorized transport infrastructure on designated roads ; in subsection 2 paragraph (a) by inserting the- words "cycling lane, pedestrian walkway" immediately after the word "road"	22. Powers of the Authority as a statutory body (1) An Authority shall have power— (a) to maintain, operate, improve and manage the roads under its jurisdiction; (b) to construct new roads; (c) to measure and assess the weights, dimensions and capacities of vehicles using any road and provide measures to ensure compliance with rules relating to axle load control, other provisions of the Traffic Act (Cap. 403) and any regulations under this Act; and (d) to provide such amenities or facilities for persons making use of the services or facilities provided by the Authority as may appear to the Authority necessary or desirable.	<u>The Proposed recommendation for Amendment of Section 22 of Cap 408 is as follow:</u> Powers of the Authority as a statutory body (1) An Authority shall have power — (a) to maintain, operate, improve and manage the roads under its jurisdiction, including designated lanes and tracks for non motorized transport;while adhering to environmental regulations, including conducting mandatory Environmental Impact Assessments (EIA) and implementing necessary measures to minimise adverse environmental impacts under Environmental Management and Coordination Act (EMCA). (b) to construct new roads; (c) to measure and assess the weights, dimensions and capacities of vehicles using any road and provide measures to ensure compliance with rules relating to axle load control, other provisions of the Traffic Act (Cap. 403) and any regulations under this Act; and (d) to provide such amenities or facilities for persons making use of the services or facilities provided by the Authority as may appear to the	Adhering to environmental regulations and conducting mandatory Environmental Impact Assessments (EIA) ensures that road projects consider their environmental impact. This aligns with the Environmental Management and Coordination Act (EMCA), promoting sustainable development and minimising adverse environmental effects.

		(2) Subject to this Act, the powers conferred by, subsection (1) shall include all such powers as are necessary or appropriate and proper for the purposes of the Authority and in particular, but without prejudice to the generality of the foregoing, shall include powers— (a) to construct any road, bridge, building, drainage structure, drain, river channelling or any other necessary or desirable works required for the purposes of the Authority; (b) to operate machinery and equipment on public roads in such manner as it deems necessary; (c) to carry on any business necessary or desirable to be carried on for the purposes of the Authority and to act as an agent for the Government in the provision of any agreed services; (d) with the approval of the Cabinet Secretary, to determine, impose and levy rates, tolls, charges, dues or fees for any of its	Authority necessary or desirable (2) Subject to this Act, the powers conferred by, subsection (1) shall include all such powers as are necessary or appropriate and proper for the purposes of the Authority and in particular, but without prejudice to the generality of the foregoing, shall include powers— (a) to construct any road, cycling lane, pedestrian walkway, bridge, building, drainage structure, drain, river channelling or any other necessary or desirable works required for the purposes of the Authority; (b) to operate machinery and equipment on public roads in such manner as it deems necessary; (c) to carry on any business necessary or desirable to be carried on for the purposes of the Authority and to act as an agent for the Government in the provision of any agreed services; (d) with the approval of the Cabinet Secretary, to determine, impose and levy rates, tolls, charges, dues or fees for any of its services or for the use by any person of its facilities; (e) to prohibit, control or regulate— (i) the use by any person of the services	
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		services or for the use by any person of its facilities; (e) to prohibit, control or regulate— (i) the use by any person of the services performed, or the facilities provided, by the Authority; or (ii) the usage of any vehicle on any road or on any premises occupied by the Authority; (f) to sell, let or otherwise dispose of any property, movable or immovable, which in the opinion of the Board, is not necessary for the purposes of the Authority: Provided that an Authority shall not so sell, let or otherwise dispose of any building or land placed at its disposal by the Government otherwise than with the consent of, and under conditions agreed by, the Cabinet Secretary; (g) to act as an agent for any person engaged, whether within Kenya or elsewhere, in the performance of services, or the	performed, or the facilities provided, by the Authority; or (ii) the usage of any vehicle on any road or on any premises occupied by the Authority; (f) to sell, let or otherwise dispose of any property, movable or immovable, which in the opinion of the Board, is not necessary for the purposes of the Authority: Provided that an Authority shall not so sell, let or otherwise dispose of any building or land placed at its disposal by the Government otherwise than with the consent of, and under conditions agreed by, the Cabinet Secretary; (g) to act as an agent for any person engaged, whether within Kenya or elsewhere, in the performance of services, or the provision of facilities, of a kind similar or complementary to those performed or provided by the Authority; (h) to enter into agreements with any person— (i) for the supply, construction, manufacture, maintenance or repair by that person of any property, movable or immovable, necessary or desirable for the purposes of the Authority; (ii) for the performance or provision by that person of any of the services or the facilities which may be performed or provided by the Authority;	
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		provision of facilities, of a kind similar or complementary to those performed or provided by the Authority; (h) to enter into agreements with any person— (i) for the supply, construction, manufacture, maintenance or repair by that person of any property, movable or immovable, necessary or desirable for the purposes of the Authority; (ii) for the performance or provision by that person of any of the services or the facilities which may be performed or provided by the Authority; (iii) for the payment, collection or apportionment of any tolls, rates, charges or other receipts arising out of the performance or the provision by that person of any such services or facilities; (i) to establish or acquire any subsidiary corporation with the written approval of the Cabinet Secretary and the Cabinet Secretary	(iii) for the payment, collection or apportionment of any tolls, rates, charges or other receipts arising out of the performance or the provision by that person of any such services or facilities; (i) to establish or acquire any subsidiary corporation with the written approval of the Cabinet Secretary and the Cabinet Secretary responsible for finance; or (j) to enter into any arrangement with any state corporation or other entity which, in the opinion of the Board, is likely to promote or secure the provision, or improved provision, of any service or facilities which they may separately provide. (3) For the avoidance of doubt, it is hereby declared that subsections (1) and (2) relate only to the capacity of the Authority as a statutory body and nothing in those provisions shall be construed as authorising the disregard by the Authority of any law. (4) The powers conferred on an Authority under this section to construct or improve any road shall empower the Authority to undertake the	
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		responsible for finance; or (j) to enter into any arrangement with any state corporation or other entity which, in the opinion of the Board, is likely to promote or secure the provision, or improved provision, of any service or facilities which they may separately provide. (3) For the avoidance of doubt, it is hereby declared that subsections (1) and (2) relate only to the capacity of the Authority as a statutory body and nothing in those provisions shall be construed as authorising the disregard by the Authority of any law. (4) The powers conferred on an Authority under this section to construct or improve any road shall empower the Authority to undertake the construction or execution of any works necessary thereto on land vested in the Authority or on land placed at its disposal by the Government, or, in the case	construction or execution of any works necessary thereto on land vested in the Authority or on land placed at its disposal by the Government, or, in the case of land not so vested in, or placed at the disposal of, the Authority, only with the agreement of the owner of the land on which such works are to be constructed or executed. (5) Where any land is required by an Authority for the purposes of its functions under this Act the Authority shall proceed in accordance with section	
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		of land not so vested in, or placed at the disposal of, the Authority, only with the agreement of the owner of the land on which such works are to be constructed or executed. (5) Where any land is required by an Authority for the purposes of its functions under this Act the Authority shall proceed in accordance with section 22.		
Amend ment of section 46 of Cap. 408.	7. The principal Act is amended by inserting the following new section immediately after section 46- 46A. The Cabinet Secretary may make regulations for design and construction of lanes for non-motorized transport relating to— (a) use, safety or maintenance of the lanes for	46. Making of regulations by Authorities (1) An Authority may with the approval of the Minister make regulations for the better performance of its functions under this Act. (2) Without prejudice to the generality of subsection (1), an Authority may make regulations — a. relating to the use, safety or maintenance of the roads falling within its responsibility; b. relating to the erection of structures on, near, over or under	<u>The Proposed recommendation for Amendment of Section 46 of Cap 408 is as follows:</u> Making of regulations by Authorities (1) An Authority may with the approval of the Minister make regulations for the better performance of its functions under this Act. (2) Without prejudice to the generality of subsection (1), an Authority may make regulations — a. relating to the use, safety or maintenance of the roads falling within its responsibility; b. relating to the erection of structures on, near, over or under the roads falling within its responsibility;	It is important for the Cabinet Secretary (CS) for Roads to consult with the Kenya Roads Board and relevant professionals because they possess specialized knowledge and expertise in road design, construction, and management. Their input ensures that the recommendations are based on best practices and the latest technological advancements. The involvement of the Kenya Roads Board also ensures that the recommendations comply with national standards and regulations. This helps maintain consistency and quality in road infrastructure across

	non-motorized transport; (b)uniformity of design and standards of the. lanes for non-motorized transport; (c)the roads in which the lanes for non-motorized transport shall be constructed; and (d)the level and the width of the lanes for non-motorized transport	the roads falling within its responsibility; c. for the drainage of streets, lands, compounds and buildings adjacent to the road; d. respecting the level, width and construction of roads and streets; e. for the removal, demolition or alteration of any projection, structure or thing obstructing a road or likely to cause damage or inconvenience to road users; and f. prescribing the fees payable for services provided by the Authority.	c. for the drainage of streets, lands, compounds and buildings adjacent to the road; d. respecting the level, width and construction of roads and streets; e. for the removal, demolition or alteration of any projection, structure or thing obstructing a road or likely to cause damage or inconvenience to road users; and f. prescribing the fees payable for services provided by the Authority 46A. The Cabinet 'Secretary – in consultation with The Kenya Roads Board and relevant professionals may make regulations for design and construction of lanes for non-motorized transport relating to (a) use, safety or maintenance of the lanes for non-motorized transport; (b)uniformity of design and standards of the. lanes for non-motorized transport; (c)the roads in which the lanes for non-motorized transport shall be constructed; and	the country.
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			(d)the level and the width of the lanes for non-motorized transport	
Transitional Clause	9. The enactment of these amendments shall take effect in 15 year's time to cater for already existing Infrastructure.		<u><i>The Proposed recommendation for the Transitional Clause is as follows:</i></u> The enactment of this amendment shall take effect in 15 year's time to cater for already existing Infrastructure. <u>have a fifteen-year transitional period from the date that it comes into effect, pursuant to section 15 of the Sixth Schedule to the Constitution, and for connected purposes intended to be a period for establishing the institutional mechanisms for continuous constitutional implementation well beyond the transitional period.</u>	The specific wording of the transitional clause is important, as clear and precise wording ensures that the intent of the clause is easily understood by all stakeholders, including lawmakers, enforcers, and the public.

GENERAL COMMENTS

Objects and Guiding Principles	The Bill should expressly set out clear objects and guiding principles that align the road sector with the Constitution and the broader public interest. These should include the national values and principles under Article 10, the values and principles of public service under Article 232, the leadership and integrity principles under Articles 73 and 75, and the principle of universal access. The Bill should also give effect to Article 69 of the Constitution, particularly the State's obligations relating to environmental protection, public participation, environmental impact assessment and sustainable use of natural resources.
Environmental and Social Safeguards	The functions of the relevant road authorities should expressly include the commissioning of Environmental and Social Impact Assessments (ESIAs) and Strategic Environmental Assessments (SEAs), where applicable, prior to the construction and development of roads, in accordance with the Environmental Management and Co-ordination Act. Environmental and social safeguards should be integrated into road planning and development rather than treated as a separate or subsequent consideration.
Environment, Health, Safety and Security	The Bill should expressly incorporate environmental, health, safety and security considerations in road planning and development, including reference to the relevant provisions of Chapter Five of the Constitution on Land and Environment and Natural Resources and the Environment, Health, Safety and Security provisions of the National Integrated Transport Policy, 2024.
Evidence-Based and Climate-Responsive Road Planning	Road planning models and design standards should be periodically reviewed and updated to reflect changing conditions, including population growth, climate change, changes in land use and proposed developments. Road planning should be based on current and forward-looking data so that infrastructure investments remain responsive to emerging risks, demand and development patterns.

Safe and Inclusive Road Design	Road design should take into account the safety and needs of different categories of road users. This should include provision for roadside stations with appropriate supporting facilities on highways and major roads to enable road users to rest and reduce fatigue-related accidents, as well as appropriate infrastructure for animal crossings, livestock, donkeys and animal-drawn carts where relevant to the local context.
Inclusive Governance	The composition of the Roads Board should be reviewed to provide for broader stakeholder representation, including civil society organisations working in the environment and transport sectors and persons with disabilities. Broader representation would strengthen the diversity of technical and lived experience informing road sector governance.
Devolved Functions	The Bill should also use consistent constitutional terminology, including clear references to the Cabinet Secretary and county governments, and clearly reflect the respective mandates of national and county governments in the planning, development and management of roads.